

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

I. STATEMENT OF POLICY

P-351-STEP *** * PO TIME LIMITS

Each FITAP client is subject to time limited benefits per B-1700-FITAP when they are a parent, other caretaker relative, or the spouse of the parent or caretaker relative, AND they are included in the assistance unit.

A minor parent who receives benefits as a child is not subject to time limited benefits because they are a dependent child. A minor parent who is not a dependent child is subject to both the 24-month and 60-month time limit policy.

Refer to [B-1720-FITAP](#) regarding the 24-Month Time Limit requirements and to [B-1730-FITAP](#) regarding the 60-Month Time Limit requirements for additional information.

II. PROCEDURES

P-351-STEP - PR TIME LIMITS

Time Limit data can be found in the LITE Benefit Issuance module on the FITAP Time Clock tab. Below is an example of the **FITAP Time Clock – Details** screen in LITE that tracks time limit data.

FITAP Time Clock - Details	
PERSON INFORMATION	
Person Name:	JANE SMITH, 26F
Person ID:	123456
24 Month Time Clock Counter State:	26
Out of State Count Month(s):	0
60 Month Time Clock Counter Federal:	59
Participation Exemption Counter:	0
Total Months of Benefits Counter:	59
\$900 Earned Income Disregard Months:	5

During normal case management activities, the STEP Coach must:

- maintain awareness of the participant's FITAP Time Clock, including their 24 Month Time Clock Counter (State) and 60 Month Time Clock Counter (Federal);
- discuss their need for continuation of FITAP benefits to support them while they work on their goals;
- ask questions about the family's situation to determine if there are extenuating circumstances that might warrant an exemption or an extension; and

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

- routinely document goals, progress, challenges, successes, and extenuating circumstances in Person Notes.

24 MONTH EXEMPTIONS

There are two types of exemptions that will stop the 24-month time limit clock from counting the month(s) of FITAP benefits for parents. These exemptions include: Incapacitated or Disabled, and \$900 Earned Income Disregard.

Note: There are no exemptions that stop the 60-month time limit clock from counting the month(s) of FITAP benefits.

Incapacitated or Disabled (STEP)

If the participant is a parent and reports a disability, continuous hospitalization, temporary incapacity, or total incapacity that prevents work activity for at least 30 days but no more than six months, the STEP Coach must request the FITAP Analyst to verify and establish Incapacity in accordance with [C-1510-FITAP](#).

Once the FITAP Analyst enters a verified disability record and authorizes the change, LITE will assign the value, *Incapacitated or Disabled (STEP)*, for the 24 Month Exemption, and the participant's receipt of FITAP benefits will not be counted towards the 24 Month Time Clock Counter State for the Benefit Month. The exemption will continue to populate for each Benefit Month as long as the verified disability record exists.

In the example below, the participant was a Parent (other than a Minor Unmarried Parent -MUP), qualified for a 24 Month Exemption based upon incapacity, and had 'No' populated for November and December 2022 for the 24 Month Time Clock Counter State. When calculating the number of benefit months, LITE will not count November or December towards the 24-month time limit.

Benefit Month	24 Month Time Clock Counter State	60 Month Time Clock Counter Federal	24 Month Exemption	State	Override	Extension	Parent Indicator	\$900 Earned Income Disregard	Inclusion	View/Edit
12/2022	No	Yes	Incapacitated or Disabled (STEP)	Louisiana	No		Parent Other than Minor Unmarried Parent		Included in Assistance Unit	
11/2022	No	Yes	Incapacitated or Disabled (STEP)	Louisiana	No		Parent Other than Minor Unmarried Parent		Included in Assistance Unit	

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

\$900 Earned Income Disregard (STEP)

LITE will automatically assign the value, **\$900 Earned Income Disregard (STEP)**, for the 24 Month Exemption, if the participant is a parent, has earned income budgeted, and is receiving the \$900 time-limited deduction in accordance with [B-650-FITAP](#), section B-651-3-FITAP. Any Benefit Month that includes this exemption will not be counted towards the 24 Month Time Clock Counter State.

In the example below, the participant was a Parent (other than a MUP), qualified for a 24 Month Exemption based upon receiving the \$900 earned income disregard, and had 'No' populated for October, November, and December 2022 for the 24 Month Time Clock Counter State. When calculating the number of benefit months, LITE will not count October, November, or December towards the 24-month time limit.

Benefit Month	24 Month Time Clock Counter State	60 Month Time Clock Counter Federal	24 Month Exemption	State	Override	Extension	Parent Indicator	\$900 Earned Income Disregard	Inclusion	View/Edit
12/2022	No	Yes	\$900 Earned Income Disregard (STEP)	Louisiana	No		Parent Other than Minor Unmarried Parent	Yes	Included in Assistance Unit	
11/2022	No	Yes	\$900 Earned Income Disregard (STEP)	Louisiana	No		Parent Other than Minor Unmarried Parent	Yes	Included in Assistance Unit	
10/2022	No	Yes	\$900 Earned Income Disregard (STEP)	Louisiana	No		Parent Other than Minor Unmarried Parent	Yes	Included in Assistance Unit	

P-351-1-STEP – PR TIME LIMIT EXTENSION REASONS

There are five types of extensions that may allow a STEP participant to continue receiving FITAP benefits beyond the 24-month and/or 60-month time limit. These extensions include:

- Hardship (T5),
- Unfavorable Job Factors (T2),
- Loss of Job/No Fault (T3),
- Pending Appeal (T6), and
- Maintain Compliance with FSA (T7).

Note: Maintain Compliance with FSA (T7) is only allowed for the 24-month time limit, and should be granted only when the participant does not qualify for any of the other extension reason types.

Hardship (T5)

 Department of Children & Family Services Building a Stronger Louisiana	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

A hardship has occurred which affects the participant's ability to obtain employment. These hardship extensions are limited to the period of time the condition or situation is expected to last.

Examples of such hardships include:

- when a parent/caretaker relative is under treatment for a serious addiction and work activity participation is not recommended by the treating organization, or
- when adequate child care or transportation is not available, or
- a temporary family crisis such as death of a family member, eviction, serious illness or accident has occurred, or
- domestic violence situations, or
- when a parent is required to provide full-time care to an incapacitated or disabled member of the household, or
- incapacity of the parent or other caretaker relative for purposes of applying the 60-month limit.

Unfavorable Job Factors (T2)

Factors relating to job availability are determined to be unfavorable. This extension can be supported in the following ways:

- The STEP Coach's evaluation of the participant's education, training, literacy level, skills, and the availability of jobs for which the participant is qualified establishes that the participant is unemployable.
- The STEP Coach determines that there are no employers in the commuting area of the participant who will accept applications for employment or will be hiring.

The commuting area is defined as the area around the participant's home which can be reached within a two-hour round trip by public or private transportation.

Loss of Job/No Fault (T3)

The participant loses their job as a result of factors not related to their job performance.

Pending Appeal (T6)

The participant's FITAP case remains eligible due to a Fair Hearing request pending a decision by the DCFS Bureau of Appeals.

Note: The STEP Coach and Supervisor must approve the time limit extension until an appeal decision is rendered.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

Maintain Compliance with FSA (T7)

The client is in compliance with the Family Success Agreement.

P-351-2-STEP – PR INITIAL EXTENSION DECISIONS

Cases approaching the 24-month and 60-month time limits must be reviewed for consideration of an extension or case closure, including when an extension period is expiring and additional time is needed. When an extension period is expiring and additional time is not needed, an extension determination must be entered in the LITE system indicating a denial and the reason.

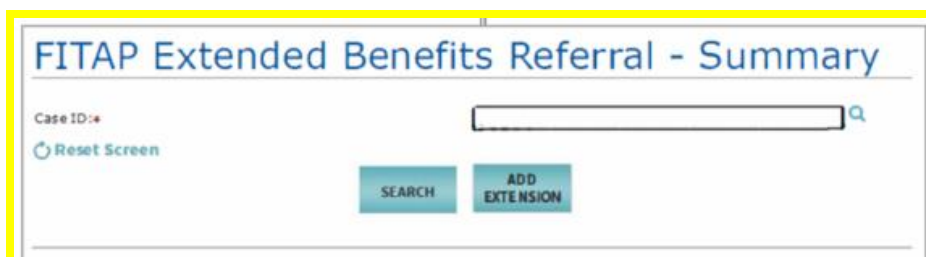
In the 22nd and 58th months of FITAP benefits, LITE will generate a Benefit Management task advising the STEP Coach to review the case for time limits. When the FITAP benefit reaches:

- the **22nd month**, LITE will generate a Benefit Management task: **24 Month Clock Expire** for the appropriate staff member to take action.
- the **58th month**, LITE will generate a Benefit Management task: **Review 60 Month Clock** task for the STEP Coach to take action.

The review is to include an assessment of good cause, exceptions, exemptions, or hardships. The STEP Coach will thoroughly document person notes regarding the approaching 24-month time limit with a clear rationale for recommendation of an extension if the client meets one of the extension reasons.

From **Others** on the main navigation bar select **Benefit Issuance** for the **FITAP Extended Benefits Referral** selection to populate. The extension determination is entered in the LITE **FITAP Time Limit Decision – Details** screen which is located through **the FITAP Extended Benefits Referral – Summary** screen.

On this screen, the STEP Coach will enter the CID of the member for whom the extension determination is needed then select the **Add Extension** button in order to reach the **FITAP Time Limit Decision – Details** screen.



The screenshot shows a web interface titled "FITAP Extended Benefits Referral - Summary". It features a "Case ID:" label followed by a text input field and a magnifying glass icon. Below the input field is a "Reset Screen" link. At the bottom, there are two buttons: "SEARCH" and "ADD EXTENSION".

The below screen allows the STEP Coach to create an extension request for approval or denial. Once the worker inputs all the required information then clicks Submit, LITE will generate a **Benefit**

	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

Clock Extension task item for the STEP supervisor to review and authorize or deny the extension determination.

FITAP Time Limit Decision - Details

PERSON INFORMATION

Person Name:

Person ID:

DECISION DETAILS

24 Month Time Clock Counter State:

60 Month Time Clock Counter Federal:

Benefit Month:

Decision Date:

Decision:

Denial Reason:

Extension Reason:

Start Month:

End Month:

Staff ID:

Date:

SUPERVISOR REVIEW

Supervisor Name:

Decision Reviewed: ☐

Date:

[Reset Screen](#)

Upon receipt of the **Benefit Clock Extension** task, the STEP supervisor will start the work item. LITE will bring the supervisor to the **FITAP Extended Benefits Referral – Summary** screen, with the CID already populated. The STEP supervisor will select **Search**, followed by the **Edit Pencil** icon next to the pending approval/denial. This will bring the supervisor to the **FITAP Time Limit Decision – Details** screen where they can approve or deny the decision made by the STEP Coach. If approved, the extension may be granted for no more than six months. Document the reason for the extension in Person Notes.

After the extension is approved or denied, the STEP Coach must email the ES case owner advising that an extension determination has been made and request that EDBC is run in order for LITE to either extend or deny (or close) the program and issue a Notice of Decision.

The extension determination must be entered and approved by:

- for initial 24-month time limit determinations- the 10th day of the 23rd month of benefits,
- for initial 60-month time limit determinations- the 10th day of the 59th month of benefits, and
- for subsequent extension determinations- the 10th day of the second to last month of an extension.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

NOTE: LITE evaluates current month and future month. If the decision is not entered, approved, and authorized timely, the FITAP case may close in error. When an extension denial is needed an automated advance notice of decision must be sent allowing a 13-day period to expire prior to the effective month of closure.

P-351-3-STEP – PR SUBSEQUENT EXTENSION DECISIONS

Subsequent extensions may be completed in the month prior to the last month of an extension period, but no later than the 10th day of the last month of an extension period.

Example: Client has a current extension period of 10/2022 – 3/2023. The subsequent extension determination can be made beginning 2/2023 however no later than 3/10/2023.

At the end of an extension period, subsequent extensions will be determined as outlined in P-351-2-STEP.

There are no Benefit Management tasks associated with subsequent extensions. The Pentaho **24-60 Month Time Limit Tracking** report will be used to determine those cases due for an upcoming subsequent extension.

P-351-4 – PR Pentaho Reports

Pentaho contains two reports that should be used to monitor time limits and exemptions.

24-60 MONTH TIME LIMIT TRACKING REPORT

This report is used to track and monitor client's benefit usage months, current exemptions, current extension reasons, and extension end dates.

In the example below, there are three participants who have an initial or subsequent extension that will expire and the STEP Coach will not receive a task on their dashboard.

Panish	Staff ID	Case ID	Case Name	Person ID	Person Name	Total Months of Benefits	60 month Count	24 month Count	Current Exemption Reason	Parent Indicator	Extension Reason	Extension End Date
Orleans	00000001	123456	JANE SMITH	333333	JANE SMITH	32	32	25		Parent Other than Minor Unmarried Parent	Maintain Compliance with FSA	03/31/2023
Rapides	00000002	345678	TOM BROWN	444444	TOM BROWN	53	53	27		Parent Other than Minor Unmarried Parent	Unfavorable Job Factors	12/31/2023
LaFourche	00000003	567891	JOHN HANCOCK	555555	JOHN HANCOCK	24	24	24		Parent Other than Minor Unmarried Parent	Hardship	01/31/2023

NOTE: After January 1, 2023, the report layout will include a column for Eligibility Staff ID and Coach ID.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-300-STEP Case Management Process
	Document No./Name	P-350-STEP Time Limit Determinations
	Effective Date	January 1, 2023

FITAP 24-60 MONTH EXEMPTION/EXTENSION REPORT

This report is used to track the totals for 24 Month Exemption/Extension codes by office and 60 Month Exemption/Extension codes by office.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

Code of Federal Regulations, Title 45: [Parts 261, 262, 263, and 265](#)

Reauthorization of TANF Final Rule [\[Federal Register: February 5, 2008 \(Volume 73, Number 24\)\]](#)

[LAC 67:III.5719](#) **